of the motion. The case has settled. A dismissal review hearing is set for **July 9, 2026 at 8:30 a.m. in Department 16**. If a dismissal has been filed before that date, the hearing will be vacated.

7. 9:00 AM CASE NUMBER: C23-01531
CASE NAME: STEVIE HAYES VS. BLUE APRON, LLC
***HEARING ON MOTION IN RE: FOR PRELIMINARY APPROVAL OF CLASS AND REPRESENTATIVE ACTION SETTLEMENT**
FILED BY: HAYES, STEVIE A.
****TENTATIVE RULING:****

Summary

Plaintiffs Stevie A. Hayes ("Plaintiff Hayes") and Cortez Mitchell ("Plaintiff Mitchell") (collectively "Plaintiffs") request that the Court grant preliminary approval of a class action settlement of wage and hour claims, including a claim under the California Private Attorneys General Act of 2004, codified at Labor Code §§ 2698, et seq. ("PAGA"), against Defendant Blue Apron, LLC ("Defendant") (collectively, Plaintiffs and Defendant are referred to as the "Parties"). This settlement is preliminarily approved, and this motion is **granted** as set forth herein. No appearance is required at the May 6, 2026 hearing.

Background and Settlement Terms

Pursuant to California Rules of Court 3.769 (d) and (e), Plaintiffs Stevie A. Hayes ("Plaintiff Hayes") and Cortez Mitchell ("Plaintiff Mitchell") (collectively "Plaintiffs") request that the Court grant preliminary approval of a class action settlement of wage and hour claims, including a claim under the California Private Attorneys General Act of 2004, codified at Labor Code §§ 2698, et seq. ("PAGA"), against Defendant Blue Apron, LLC ("Defendant") (collectively, Plaintiffs and Defendant are referred to as the "Parties").

On June 21, 2023, Plaintiff Hayes filed a putative class action on behalf of Defendant's non-exempt employees alleging the following causes of action: (1) failure to pay minimum wages; (2) failure to pay overtime wages; (3) failure to provide meal periods; (4) failure to permit rest breaks; (5) failure to provide accurate itemized wage statements; (6) failure to pay all wages due upon separation of employment; (7) violation of Business and Professions Code § 17200, et seq.; for the preceding claims. Plaintiff Hayes' counsel provided written notice to the LWDA and Defendant regarding Defendant's alleged Labor Code violations, as required by Labor Code section 2699.3(a). Id. at Ex. 2. The LWDA did not respond to this notice, indicating it did not intend to investigate, thus allowing Plaintiff Hayes to bring a PAGA claim against Defendant. Id. at ¶ 3. On September 11, 2023, Plaintiff Hayes separately filed a representative action complaint against Defendant seeking to recover PAGA penalties for the same Labor Code violations, also in Contra Costa Superior Court, Case No. C23-02278 (the "Hayes PAGA Action"). Id. at ¶ 4.

On August 25, 2023, Plaintiff Mitchell filed a putative class action against Defendant in Contra Costa Superior Court, Case No. C23-02125 (the "Mitchell Class Action"). The Mitchell Class Action was removed to federal court on October 6, 2023 but has since been remanded back to state court pursuant to stipulation. Id. at ¶ 5. On September 15, 2023, Plaintiff Mitchell separately filed a representative action complaint against Defendants seeking to recover PAGA penalties for the same violations, also in Contra Costa Superior Court, Case No. C23-02337 (the "Mitchell PAGA Action"). Id. 6 at ¶ 6. On December 6, 2024, the Hayes Class Action, the Hayes PAGA Action, and the Mitchell PAGA Action were consolidated before the Superior Court for the County of Contra Costa (the "Consolidated Actions"). Id. at ¶ 9. After an unsuccessful mediation session with a mediator, Counsel for the Parties arrived at their own settlement in principle, which was memorialized into a settlement. The terms of the settlement agreement follow.

The putative class consists of approximately 1008 non-exempt employees who worked for Defendant in California (individually, "Class Member"; collectively, the "Class") from April 9, 2020 through June 9, 2023 (the "Class Period"). The basic terms of the Joint Stipulation of Class Action and PAGA Settlement and Release ("Settlement Agreement" or "Settlement") provide for the following:

(1) A non-reversionary Gross Settlement Amount of $575,000.00 allocated to approximately 1008 Class Members on a pro rata basis according to the number of weeks each Class Member worked during the Class Period;
(2) An award of up to one-third of the Gross Settlement Amount (currently $191,666.67) and up to $35,000.00 in reimbursement of costs to Plaintiffs' Counsels for services rendered as counsel on this matter;
(3) Service Payment of up to $10,000.00 to each Named Plaintiff;
(4) Settlement Administration fees and costs of up to $9,750.00; and
(5) Allocations of $25,000 for resolution of civil penalties under PAGA. Seventy-five percent (75%) of this payment will be paid to the California Labor and Workforce Development Agency ("LWDA Payment"), and twenty-five percent (25%) will be paid to Class Members who worked for Defendant during the PAGA Period (the "Aggrieved Employees").

Analyses

The primary determination to be made is whether the proposed settlement is "fair, reasonable, and adequate," under *Dunk v. Ford Motor Co*. (1996) 48 Cal.App.4th 1794, 1801, including "the strength of plaintiffs' case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction … to the proposed settlement." (See also *Amaro v. Anaheim Arena Mgmt., LLC, supra,* 69 Cal.App.5th 521.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, "[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter." (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that Neary does not always apply, because "[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutatory purpose." (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

Attorney fees

Plaintiff seeks one-third of the total settlement amount as fees, relying on the "common fund" theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: "If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the Court is not necessarily required to make such an adjustment." (*Id*., at 505.) Following typical practice, however, the fee award will not be considered at this time, but only as part of final approval.

Similarly, proposed litigation costs, administrative costs, and the requested representative payment of $10,000 for each plaintiff will be reviewed at time of final approval. Criteria for evaluation of representative payment requests are discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807.

Ruling

The Court finds that the proposed settlement is sufficiently fair, reasonable, and adequate to justify *preliminary* approval. Counsel are directed to prepare an order reflecting this ruling, the other findings in the previously submitted proposed order, and to obtain a hearing date for the motion for final approval from the Department clerk.

1. The settlement is preliminarily approved and this Motion is **granted**.
2. the Court will execute the proposed order lodged March 2, 2026, consistent with this tentative ruling and the court clerk shall attach a copy of this tentative ruling. Where the provisions of the proposed order lodged March 2, 2026 are inconsistent with or conflict the terms of this ruling, this ruling shall prevail.
3. Class counsel are directed to serve this order to parties/counsel on the service list.
4. No appearance is required at the May 6, 2026 hearing.

8. 9:00 AM CASE NUMBER: C23-01839
CASE NAME: DREW MALM VS. SCOTT HAMMEL
***HEARING ON MOTION IN RE: LEAVE TO FILED AMENDED COMPLAINT**
FILED BY: MALM, DREW
****TENTATIVE RULING:****

Plaintiff's Motion for Leave to File a SAC is continued to be heard concurrently with Defendant's MSJ/A to Plaintiff's FAC on May 13, 2026, 9:00 am in Department 16.